

and supporting papers shall be served and filed at least 16 court days before the hearing . . . [and] . . . if the notice is served by mail, the required 16-day period of notice before the hearing shall be increased by five calendar days if the place of mailing and the place of address are within the State of California”].)

The moving party also failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

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**Bayli Beardsley v. Chipotle Mexican Grill, Inc. et al**

**26CV000153**

MOTION TO DISMISS ACTION FOR DELAY IN PROSECUTION

**TENTATIVE RULING:** The motion is DENIED IN PART and GRANTED IN PART. The motion for an order to show cause (“OSC”) why the action should not be dismissed is DENIED. The alternate motion for an OSC why sanctions should not be imposed is GRANTED.

The matter is set for an OSC Re: Monetary Sanctions for Failure to Comply with CRC 3.110(b) on October 2, 2026 at 8:30 a.m. in Dept. B, to coincide with the Case Management Conference. Responsive papers must be filed and served at least 5 calendar days before the hearing. (See Rules of Court, rule 3.110(i).)<sup>1</sup> Plaintiff’s responsive papers should, at minimum, address (1) the factors for extension of time to serve a summons and complaint under rule 3.110(e) and (2) the amount of monetary sanctions requested by Defendant Napa Crossing East II, LLC (“Defendant”) as further discussed below. Defendant is invited to serve and file a reply to Plaintiff’s responsive papers. If Defendant elects to do so, the reply must be served and filed no later than 3 calendar days before the hearing.

Defendant is directed to immediately provide Notice of Entry of this Order to all parties.

#### A. PROCEDURAL MATTERS

Defendant moves, pursuant to rule 3.110(b), for an OSC why the action should not be dismissed and/or why sanctions should not be imposed, and for such other relief as the Court deems just. The motion is made on the grounds that Plaintiff failed to serve the Summons and Complaint on Defendant within 60 days after the Complaint was filed and did not effect service until 164 days after filing—without leave of Court, stipulation, or any application for an order extending time—and without any reasonable excuse for the delay, to Defendant’s prejudice.

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<sup>1</sup> All subsequent references to “rule” are to the Rules of Court unless otherwise specified.

## B. LEGAL STANDARD

“The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint.” (Rule 3.110(b).) “The court, on its own motion or on the application of a party, may extend or otherwise modify the times provided in (b)-(d). An application for a court order extending the time to serve a pleading must be filed before the time for service has elapsed. The application must be accompanied by a declaration showing why service has not been completed, documenting the efforts that have been made to complete service, and specifying the date by which service is proposed to be completed.” (Rule 3.110(e).) “If a party fails to serve and file pleadings as required under this rule, and has not obtained an order extending time to serve its pleadings, the court may issue an order to show cause why sanctions shall not be imposed.” (Rule 3.110(f).)

Defendant further cites to Code of Civil Procedure sections 128(a)(8), 575.2, 583.130, and 583.410-583.430 for support of the Court exercising its discretion under rule 3.110(b), while acknowledging that none of the mentioned Code of Civil Procedure sections are applicable to the instant circumstances. (See Mem., pp. 5-7.)

## C. DISCUSSION

Here, Plaintiff filed the Complaint on January 23, 2026. Pursuant to Rule 3.110(b), Plaintiff was required to serve Defendants and file a proof of service no later than March 24, 2026. There is no proof of service of the Complaint on any party in the Court file. According to Defendant, Plaintiff served the Summons and Complaint on July 6, 2026, which is 164 days after the Complaint was filed and 104 days beyond the deadline under rule 3.111(b). Plaintiff neither applied for, nor obtained, an order extending the time for service under rule 3.111(e). Defendant shows that there is no stipulation between the parties for such an extension.

Defendant argues that Plaintiff cannot show reasonable diligence or excuse for the delay in serving Defendant, as Defendant’s agent for service of process—where Defendant was served on July 6, 2026—has been the same since 2019. (Mem., p. 8, ¶ 13.) Defendant further argues that it has been prejudiced by the delay, in that it has “impeded the ability of the Defendant to investigate or vet the Plaintiff’s allegations, especially given the fact that the Defendant does not have control of the space within which the Plaintiff alleges to have been injured,” and “deprived [Defendant] of any opportunity to investigate or preserve any evidence which may have been relevant to a defense of such allegation.” (Mem., pp. 5, 8, ¶¶ 6-7, 14-15.)

Rule 3.110 provides no authority for the dismissal of an action based on a failure to comply with any of its terms. While rule 3.110 does not specify the type of sanctions for which it is allowed to issue an OSC, “[t]he court is presumably limited to awarding *monetary sanctions* for violation of CRC 3.110.” (Weil and Brown, et al., Cal. Prac. Guide: Civ. Pro. Before Trial, (The Rutter Group, June 2026), Ch. 4-D, § 4:352, citing Rule 2.30 [authorizing the court to issue monetary sanctions for failure to comply with Rules of Court]; see also Cal. Civ. Ctrm. Handbook and Desktop Reference, § 10:14 [“a court has no inherent authority to dismiss the case for a delay of fewer than two years, or for violation of court rules such as these that are the

attorney’s responsibility.”].) Here, Defendant concedes that the delay is “well short of that two-year mark.” (Mem., p. 7.) Based on the foregoing, Defendant’s request for an OSC regarding dismissal of the action is DENIED.

With respect to Defendant’s alternate request, although unclear, Defendant appears to be requesting an OSC regarding monetary sanctions in the amount of at least \$2,625, plus the initial filing fee, as the amount incurred in connection with bringing the present motion. (Mem., p. 9.)

The Court notes that it rarely, if ever, deals with motions concerning rule 3.110. Moreover, as a general matter of practice, the Court has rarely, if ever, *sua sponte* issued an OSC pursuant to rule 3.110(f). The Court further notes the unremarkable relief generally awarded in this circumstances. See Cal. Judges Benchbook: Civ. Proc. Before Trial (Mar. 2026), § 2.28 [“Most judges do not generally impose monetary sanctions on the first OSC, as long as the attorney has a reasonable explanation for the delay and promises to comply with the new deadline the judge has specified. A calendaring mistake is not viewed as a ‘reasonable explanation.’ If the attorney does not comply with the new deadline and cannot show good cause for failing to comply, monetary sanctions of \$100–\$250 are imposed against the attorney.”].)

That said, given that it is undisputed that Plaintiff has not complied with rule 3.110(b), has not established the factors to justify an extension of time to serve the Summons and Complaint, has not yet filed a Proof of Service of the Summons and Complaint, and has not filed an Opposition to this Motion, the Court elects to exercise its discretion to GRANT the alternate motion for an OSC why sanctions should not be imposed. The Court finds that this procedure will properly place the burden on Plaintiff to justify the delay, as opposed to placing the burden on Defendant to first show prejudice.

As such, the matter is set for an OSC Re: Monetary Sanctions for Failure to Comply with CRC 3.110(b) on October 2, 2026 at 8:30 a.m. in Dept. B, to coincide with the Case Management Conference. Responsive papers must be filed and served at least 5 calendar days before the hearing. (See rule 3.110(i).) Plaintiff’s responsive papers should, at minimum, address (1) the factors for extension of time to serve a summons and complaint under rule 3.110(e) and (2) the amount of monetary sanctions requested by Defendant. Defendant is invited to serve and file a reply to Plaintiff’s responsive papers. If Defendant elects to do so, the reply must be served and filed no later than 3 calendar days before the hearing.

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**Laurie Capitelli et al v. Melinda Stewart et al**

**26CV000878**

DEMURRER TO PLAINTIFFS’ VERIFIED COMPLAINT

**TENTATIVE RULING:** The Demurrer is OVERRULED. Defendant Melinda Stewart (“Ms. Stewart”) is granted 10 days’ leave from entry of this order to answer the Complaint. (See Rules of Court, rule 3.1320(g).)

A. PROCEDURAL MATTERS